

25STLC07079 25STLC07079

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC07079 Hearing Date: July 20, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Jorge Alvarez's Petition

to Approve Compromise of Disputed Claim on behalf of minor Plaintiff/Claimant Jorge Joshua Alvarez is granted. The proposed Orders filed on 05/12/2026 are signed and entered this date.

Analysis:

Minor Plaintiff Jorge Joshua

Alvarez ("Claimant"), by and through Plaintiff Jorge Alvarez ("Petitioner"), filed the instant action for motor vehicle negligence against Defendant Arcelia Del Carmen Lopez ("Defendant") on September 16, 2025. Petitioner's Application for Order for Appointment of Guardian Ad Litem was granted on March 27, 2026.

On May 12, 2026, Petitioner filed the instant Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability.

Discussion

Court

approval is required for all settlements

of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) "[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid.

[Citation.] [¶] Nor is the settlement

binding [on the minor] until it is endorsed by the trial court.'" (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like

Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372, subd. (a)(1).) Alternatively, the petitioner may file a declaration demonstrating that they have a right to compromise the minor's claim under Cal. Probate Code section 3500.

The Petition is complete and provides for a reasonable settlement to Claimant in light of his injuries and prognosis. Specifically, that after the motor vehicle accident, Claimant was treated for his injuries and has fully recovered. (Pet., ¶¶5-8 and Attachment 8.) The Petition is accompanied by a proposed Order Approving Compromise of Disputed Claim or Pending Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (Miscellaneous) and a proposed Order to Deposit Money into Blocked Account.

Conclusion

Therefore, Petitioner Jorge Alvarez's Petition to Approve Compromise of Disputed Claim on behalf of minor Plaintiff/Claimant Jorge Joshua Alvarez is granted. The proposed Orders filed on 05/12/2026 are signed and entered this date.

Moving
party to give notice.